

		A proof of service filed by Plaintiff on July 24, 2023 indicates that service of summons was purportedly made on Defendant by mail and acknowledgment of receipt of service, with the package being directed at Defendant's counsel. (ROA 25.) This section of the service of summons form relates to Code of Civil Procedure section 415.30, which allows for service of summons by mail when the summons is accompanied by a notice and acknowledgment of receipt and return envelope with postage prepaid. (Code Civ. Proc., § 415.30(a).) Plaintiff's proof of service does not indicate that copies of the notice and acknowledgment of receipt or envelope with prepaid postage were included in the mailed documents, as required. (ROA 25.) Further, though a summons may be served by substituted service, such service must be done at a person's office or usual mailing address and copies must be left with a person at least 18 years of age and/or with a person who is apparently in charge. (Code Civ. Proc., § 415.20(a).) Substituted service may only be made when the summons cannot with reasonable diligence be personally delivered to the person to be served. (Id. § 415.20(b).) Here, the proof of service indicates that service was purportedly made by mail only, making it inadequate for proper substituted service. Further, service on counsel would not constitute proper substituted service, as it would not be made at Defendant's office or usual place of mailing. Without proper service of summons, the Court lacks jurisdiction over Defendant. (<i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371 ["[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction."].) In light of the above, Defendant's unopposed Motion to Quash is GRANTED. <i>Defendant to give notice.</i> Parties should be prepared to go forward with the case management conference.
55	Honarkar vs. The Picerne Group, Inc. Case No. 30-2021-01208258	<i>Off-calendar.</i>

56	Felix vs. Melchor Case No. 30-2021-01222406	Plaintiff moves for a separate judgment against Defendant Pedro Ramirez Melchor It appears from the file that Plaintiff initially attempted to file a default judgment packet and a Request for Dismissal. However, the Clerk's office rejected the documents on 1/17/23 (ROA 51), with the following comments: "All Defendants not named on the Judgment, must be dismissed or disposed of. If seeking a separate Judgment, an Application for Separate Judgment pursuant to CCP 579 is required under CA Rule of Court 3.1800(a)(7)." Plaintiff then filed the Motion for Separate Judgment. It is unclear whether Plaintiff is attempting to dismiss Defendant Jarely Melchor, who responded to the Complaint or whether it is appropriate to continue the instant motion until after the trial in this matter. The case currently has a default prove-up hearing set for 11/16/2023 at 1:30 p.m. The motion is continued until 11/16/2023 at 1:30 p.m. <i>Moving party to give notice.</i>
57	National Funding, Inc. vs. XPT Logistics, Inc. Case No. 30-2023-01329408	<i>Off-calendar as moot.</i>
58	Bray vs. Fox Rent A Car, Inc. Case No. 30-2023-01301322	Defendant Fox Rent a Car Inc. ("Defendant") filed a Motion to Compel Arbitration. The Motion is DENIED pursuant to 9 U.S.C. § 402(a). 9 U.S.C. § 402 states: "(a) In general.--Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (b) Determination of applicability.--An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal law. The applicability of this chapter to an agreement to arbitrate and the validity and enforceability of